

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.

Sanctions are denied because the motion was not opposed. (Code of Civil Procedure sections 2031.300, subd. (c).) However, repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

Plaintiff's Motion for Order Deeming Plaintiff's Requests for Admission as Admitted as to Defendant MedCare Medical Center, LLC

Plaintiff's unopposed motion deeming truth of matters admitted is granted. (Code Civ. Proc. § 2033.280.) Plaintiff's request for admissions, set one, as to defendant MedCare Medical Center, LLC, are deemed admitted.

Sanctions in the amount of \$495.70 are imposed upon defendant MedCare Medical Center, LLC. The award is based upon a reasonable hourly rate of \$400 for 1 hours along with the \$95.70 filing fee. (Code Civ. Proc. § 2033.280, subd. (c))

8. S-CV-0055741 WIEAND, JAMIE v. MAZDA MOTOR OF AMERICA

Plaintiffs' Motion to Determine the Amount of Reasonable Attorney's Fees, Costs, and Expenses to be Paid by Defendant

Preliminary Matters

Defendant's objections are overruled in their entirety.

Ruling on Motion

Plaintiffs move for the court to award them \$25,084.11 in attorney's fees and \$834.11 in costs as the alleged prevailing party.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

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Civil Code section 1794 does not define “prevailing party.” Courts thus “adopt a pragmatic approach, determining prevailing party status based on which party succeeded on a practical level. [Citations.] Under that approach, the court exercises its discretion to determine the prevailing party by analyzing which party realized its litigation objectives.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 150.) Simply obtaining a net monetary recovery does not necessarily render a party the prevailing party. (*See MacQuiddy v. Mercedes-Benz USA, LLC* (2015) 233 Cal.App.4th 1036, 1047.)

Here, when taking a pragmatic approach to determine which party realized its litigation objectives, the court determines plaintiffs are not the prevailing parties. Their litigation objectives were to rescind their contract for the vehicle, restitution, damages, prejudgment interest, attorney’s fees and costs, and a civil penalty of two times their damages. Notably, plaintiffs did not seek repurchase of their vehicle in the complaint. The settlement between the parties and the communications thereto, attached as Exhibits 1 and 2 to Chad David’s declaration, confirms the recovery received was repurchasing the vehicle, reimbursing plaintiffs for their down payment, offsets, and other incidental costs. These were not litigation objectives.

Additionally, the court would be remiss to not mention that defendant initiated the repurchase process before the complaint was filed, before the complaint was served, and after it answered the complaint. However, the delay appears attributable to plaintiffs and their counsel of record for not providing the documents defendant requested to finalize the repurchase process. (*Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 881.) So, the complaint was not filed to secure a repurchase of their vehicle; it appears the complaint was filed “to recover the civil penalty and/or attorney fees.” (*Dominguez v. American Suzuki Motor Corp.* (2008) 160 Cal.App.4th 53, 59.)

Accordingly, plaintiff’s motion is denied.

9. S-CV-0057320 FLANAGAN, SEAN v. MAYHEW, LYNN

Defendant Psomas Inc.’s Demurrer to the Complaint

Defendant demurs to the first cause of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action for personal injury/negligence. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described